# CERTIFICATE OF INSURANCE

Hollis Marlow Collegiate Commons | Raleigh, NC

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|---|---|
| **Insured** | Hollis Marlow Collegiate Commons Owner LLC |
| **Location Covered** | Hollis Marlow Collegiate Commons, 4820 Meadow Court, Raleigh, NC 34841 |
| **Certificate Date** | October 9, 2023 |
| **Mortgagee** | Redstone Capital Finance |

## Schedule of Coverages

| Coverage | Carrier | Policy No. | Effective | Expiration | Limit | Deductible |
|---|---|---|---|---|---|---|
| Commercial Property | Allied Heritage Insurance | UMB8610014 | 01/02/2025 | 01/02/2026 | $1,000,000 | $50,000 |
| General Liability | Allied Heritage Insurance | CPP3159445 | 02/18/2025 | 02/18/2026 | $10,000,000 | $5,000 |
| Umbrella / Excess | Allied Heritage Insurance | GL9851401 | 02/17/2025 | 02/17/2026 | $10,000,000 | $25,000 |
| Business Income | Keystone Casualty | GL2864876 | 09/15/2025 | 09/15/2026 | $2,000,000 | $25,000 |
| Flood | Allied Heritage Insurance | BOP1856918 | 04/13/2024 | 04/13/2025 | $10,000,000 | $5,000 |
| Windstorm / Hail | Prairie State Indemnity | BOP4030829 | 09/19/2023 | 09/18/2024 | $10,000,000 | $5,000 |
| Terrorism (TRIA) | Blue Ridge Underwriters | CPP6278080 | 05/17/2026 | 05/17/2027 | $1,000,000 | $5,000 |
| Equipment Breakdown | Blue Ridge Underwriters | GL1810561 | 07/05/2023 | 07/04/2024 | $5,000,000 | $50,000 |
| Ordinance & Law | Prairie State Indemnity | GL9203128 | 04/02/2024 | 04/02/2025 | $5,000,000 | $50,000 |
| Workers' Compensation | Allied Heritage Insurance | UMB2295376 | 03/12/2024 | 03/12/2025 | $10,000,000 | $100,000 |
| Cyber Liability | Great Lakes Mutual | GL5512871 | 02/19/2023 | 02/19/2024 | $5,000,000 | $10,000 |
| Crime / Fidelity | Prairie State Indemnity | UMB2305227 | 12/04/2023 | 12/03/2024 | $2,000,000 | $5,000 |
| Pollution Legal Liability | Keystone Casualty | UMB4847438 | 05/05/2025 | 05/05/2026 | $5,000,000 | $100,000 |
| Employment Practices | Keystone Casualty | UMB1798777 | 03/21/2023 | 03/20/2024 | $10,000,000 | $100,000 |

Report generated 10/09/2023. Figures are unaudited and subject to change.

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## Schedule of Coverages

| Coverage | Carrier | Policy No. | Effective | Expiration | Limit | Deductible |
|---|---|---|---|---|---|---|
| Commercial Property | Allied Heritage Insurance | GL1490801 | 03/08/2025 | 03/08/2026 | $1,000,000 | $100,000 |
| General Liability | Keystone Casualty | CPP1427262 | 10/31/2024 | 10/31/2025 | $5,000,000 | $25,000 |
| Umbrella / Excess | Allied Heritage Insurance | BOP6376045 | 01/26/2024 | 01/25/2025 | $25,000,000 | $100,000 |
| Business Income | Blue Ridge Underwriters | UMB5493395 | 11/05/2025 | 11/05/2026 | $10,000,000 | $50,000 |
| Flood | Blue Ridge Underwriters | UMB4858219 | 09/12/2024 | 09/12/2025 | $2,000,000 | $25,000 |
| Windstorm / Hail | Sentinel Property & Casualty | CPP1190181 | 07/02/2025 | 07/02/2026 | $50,000,000 | $10,000 |
| Terrorism (TRIA) | Keystone Casualty | GL4413769 | 11/09/2023 | 11/08/2024 | $1,000,000 | $100,000 |
| Equipment Breakdown | Sentinel Property & Casualty | BOP9120911 | 11/13/2024 | 11/13/2025 | $25,000,000 | $100,000 |
| Ordinance & Law | Great Lakes Mutual | CPP4336101 | 05/09/2026 | 05/09/2027 | $5,000,000 | $25,000 |
| Workers' Compensation | Keystone Casualty | CPP6404394 | 03/16/2023 | 03/15/2024 | $5,000,000 | $50,000 |
| Cyber Liability | Blue Ridge Underwriters | BOP3738326 | 11/20/2024 | 11/20/2025 | $5,000,000 | $100,000 |
| Crime / Fidelity | Great Lakes Mutual | CPP2679429 | 03/04/2023 | 03/03/2024 | $50,000,000 | $50,000 |
| Pollution Legal Liability | Keystone Casualty | UMB5155370 | 05/16/2025 | 05/16/2026 | $50,000,000 | $25,000 |
| Employment Practices | Blue Ridge Underwriters | BOP9533265 | 04/15/2024 | 04/15/2025 | $2,000,000 | $10,000 |

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**1. Appointment.** Owner appoints Manager as the exclusive managing agent of Hollis Marlow Collegiate Commons, and Manager accepts the appointment under the terms of this Agreement. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**2. Term.** This Agreement has an initial term of one year and renews automatically for successive one-year terms unless terminated on thirty days' notice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**3. Management Fee.** Manager shall receive a monthly management fee equal to 3.8% of Gross Collected Revenues, plus a construction supervision fee of 5% of capital project costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**4. Duties of Manager.** Manager shall lease, market, operate and maintain the Property, collect rents, pay expenses, hire and supervise on-site personnel and maintain books and records. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**5. Operating Account.** All receipts shall be deposited in a segregated operating account in Owner's name. Manager is authorized to disburse funds in accordance with the approved budget. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**6. Budgets and Reporting.** Manager shall submit the annual operating and capital budget at least sixty days before each fiscal year and monthly financial reports by the fifteenth day of each month. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**7. Spending Authority.** Manager may incur expenses not exceeding $178,000 individually without Owner approval, except in an emergency threatening life or property. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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# Disclaimer and Confidentiality

All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This document relates solely to Hollis Marlow Collegiate Commons and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This document relates solely to Hollis Marlow Collegiate Commons and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This document relates solely to Hollis Marlow Collegiate Commons and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

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